

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fendley	Team: Squad #05	CCRB Case #: 201412610	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 12/17/2014 11:30 PM	Location of Incident: 50th Street between 5th and 6th Avenue	18 Mo. SOL 6/17/2016	Precinct: 72		
Date/Time CV Reported Thu, 12/18/2014 11:58 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 12/18/2014 11:58 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Francisco Delossantos	2178	928178	072 PCT
2. POM Elvis Merizalde	26862	946000	072 PCT
3. An officer			072 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Wilkis Cespedes	11572	946847	072 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Abuse: An officer searched § 87(2)(b)	A . Officer(s) Unidentified
B . POM Elvis Merizalde	Abuse: PO Elvis Merizalde refused to provide his shield number to § 87(2)(b)	B . Unsubstantiated
C . POM Elvis Merizalde	Off. Language: PO Elvis Merizalde made remarks to § 87(2)(b) based upon race.	C . Unsubstantiated
D . SGT Francisco Delossantos	Off. Language: Sgt. Francisco Delossantos made remarks to § 87(2)(b) based upon race.	D . Unsubstantiated

Case Summary

On December 18, 2014, § 87(2)(b) filed this complaint via the CCRB's website.

On December 17, 2014, at approximately 11:54 p.m., § 87(2)(b)'s vehicle was stopped for illegal window tints by PO Wilkis Cespedes, PO Elvis Merizalde and Sgt. Francisco Delossantos, all of the 72nd Precinct, in the vicinity of 50th Street between 5th Avenue and 6th Avenue in Brooklyn. § 87(2)(b) was asked for his identification information, which he provided. § 87(2)(b) alleged that either PO Merizalde or Sgt. Delossantos, he could not recall who, asked him to remove the items from a Century 21 bag that was located in the back of his vehicle (**Allegation A**). PO Cespedes walked back to his police car and § 87(2)(b) asked PO Merizalde for all three officers' badge numbers. § 87(2)(b) alleged that PO Merizalde did not provide the information (**Allegation B**). All officers then walked back to their police vehicle.

About ten minutes later, PO Merizalde and Sgt. Delossantos returned to § 87(2)(b)'s vehicle. § 87(2)(b) alleged that both PO Merizalde and Sgt. Delossantos, at separate points, explained to him that an officer Timoshenko had been shot and killed by black people in cars with tinted windows (**Allegations C and D**). § 87(2)(b) also alleged that PO Merizalde and Sgt. Delossantos also both told him that some Latino people, but black people mainly, murder each other and officers more often than officers murder them (**subsumed into Allegations C and D**). Both officers then returned to their police vehicle. PO Cespedes, with PO Merizalde, approached § 87(2)(b)'s vehicle one last time to issue him two summonses for his illegal window tints (encl. 5 A).

Mediation, Civil Proceedings and Criminal Histories

§ 87(2)(b) declined to mediate his complaint § 87(2)(b). As of April 10, 2015, the request from the New York City Comptroller's officer for a notice of claim filed regarding this incident was still pending. The results will be added to the case file upon receipt. § 87(2)(b), § 87(2)(b)

Civilian and Officer CCRB Histories

PO Merizalde has been a member of the service for seven years and there are no substantiated allegations against him. He has no prior offensive language allegations against him. PO Merizalde does have two prior refusal to provide badge number allegations against him, in CCRB cases 201012823 and 201304020 (encl. 1 A-B). Sgt. Delossantos has been a member of the service for thirteen years and there are no substantiated allegations against him. He has two prior offensive language allegations against him, in CCRB cases 201304766 and 201408958, § 87(2)(g) (encl. 1 C). This is the first complaint filed by § 87(2)(b) (encl. 1 D).

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Explanation of Subject Officer Identification

§ 87(2)(b) described the officer who refused to provide all officers' badge numbers and made an offensive remark towards him as the shortest of the three officers, about 5'7" tall, and as having a chubby build. § 87(2)(b) also said the officer was the same one who brought back his expired registration and asked for an updated one (encl. 3 A-F). PO Merizalde is 5'6" tall and is

190 pounds (encl. 4 H). Thus, his pedigree information matches § 87(2)(b)'s description of him. Further, PO Merizalde confirmed that he was the officer who returned to § 87(2)(b)'s vehicle to inquire about the expired document. § 87(2)(g)

§ 87(2)(b) described the officer who made an offensive remark towards him as being between 5'10"-6' tall and having the darkest complexion of the three officers present during the incident. Sgt. Delossantos is 5'11" tall and has the darkest complexion of all officers present (encl. 4 N). § 87(2)(g) Further, § 87(2)(b) alleged that the offensive remarks were said by the two officers who did not issue § 87(2)(b) the summonses. All officers were consistent with the fact that PO Cespedes was the officer who issued § 87(2)(b) the summonses. § 87(2)(g)

Allegation A – Abuse of Authority: An officer searched § 87(2)(b)

§ 87(2)(b) alleged that after he provided his identification either PO Merizalde or Sgt. Delossantos, he could not recall which one, asked him what was in a Century 21 bag located in the back of his vehicle and told him to remove the items inside of it. PO Cespedes, PO Merizalde and Sgt. Delossantos all denied that § 87(2)(b) was told to remove items from a bag located in his vehicle (encl. 4 E-G; 4 L-M; 4 R-S). None of the officers even recalled seeing a Century 21 bag in § 87(2)(b)'s vehicle.

§ 87(2)(g) Therefore, it is recommended that **Allegation A** be closed as **officer(s) unidentified**.

Allegation B – Abuse of Authority: PO Elvis Merizalde refused to provide his shield number to § 87(2)(b)

Allegation C – Offensive Language: PO Elvis Merizalde made remarks to § 87(2)(b) based upon race.

Allegation D – Offensive Language: Sgt. Francisco Delossantos made remarks to § 87(2)(b) based upon race.

After § 87(2)(b)'s vehicle was stopped, he provided his identification to PO Cespedes, PO Merizalde and Sgt. Delossantos. § 87(2)(b) asked PO Merizalde for all officers' badge numbers and alleged that PO Merizalde only told him that he would be summonsed if he wanted to act that way. He said that PO Merizalde never provided his badge number and all officers just walked back to their police vehicle. About ten minutes later, PO Merizalde and Sgt. Delossantos returned to § 87(2)(b)'s vehicle and told him not to make the situation more difficult for them. They also explained that § 87(2)(b) had been pulled over because of his darkly tinted windows. They both asked if he had ever heard of Officer Timoshenko. When § 87(2)(b) replied that he had not, PO Merizalde and Sgt. Delossantos both explained that he had been shot by black people in cars with tinted windows. § 87(2)(b) told the officers that officers kill more minorities than the other way around. Both PO Merizalde and Sgt. Delossantos replied that some Latino people, but black people mainly, murder each other and officers more often than officers murder them. Both officers ended up walking back to their vehicle before the window tint summonses were issued to § 87(2)(b).

PO Merizalde, Sgt. Delossantos and PO Cespedes all denied that § 87(2)(b) requested their badge numbers, that they refused to provide their numbers and that any of them said or heard any comments about PO Timoshenko or black people. Further, all three officers denied Sgt. Delossantos having any verbal interactions with § 87(2)(b) at all.

§ 87(2)(g)

. Therefore, it is recommended that **Allegations B, C and D** be closed as **unsubstantiated**.

Pod: 5

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date